

The Maharashtra Employees of Private Schools (Conditions of Service) Regulation Act, 1977

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State of Maharashtra - Act

The Maharashtra Employees of Private Schools (Conditions of Service) Regulation Act, 1977

MAHARASHTRA

India

The Maharashtra Employees of Private Schools (Conditions of Service) Regulation Act, 1977

Act 3 of 1978

Published on 16 March 1978

Commenced on 16 March 1978

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The Maharashtra Employees of Private Schools (Conditions of Service) Regulation Act, 1977

Maharashtra Act

No. 3 of 1978

For Statement of Objects and Reasons, see Maharashtra Government Gazette, 1977, Part 5, Extraordinary, page 319.

(This Act received the assent of the President on the 16th March, 1978; assent was first published in the Maharashtra Government Gazette, Part 4, on the 20th March 1978).

An Act to regulate recruitment and conditions of service of employees in certain private schools.

Whereas it is expedient to regulate the recruitment and conditions of service of employees in certain private schools in the State, with a view to providing such employees security and stability of service to enable them to discharge their

duties towards the pupils and their guardians in particular, and the institution and the society in general, effectively and efficiently;

And Whereas it is further expedient in the public interest to lay down the duties and functions of such employees with a view to ensuring that they become accountable to the Management and contribute their mite for improving the standard of education;

And Whereas it is also necessary to make certain supplemental, incidental and consequential provisions; It is hereby enacted in the Twenty-eighth Year of the Republic of India as follows:-

1.

Short title, extent and commencement.

(1)

This Act may be called the Maharashtra Employees of Private Schools (Conditions of Services) Regulation Act, 1977.

(2)

It extends to the whole of the State of Maharashtra.

(3)

It shall come into force on such [date]

[15th July, 1981 G.N., E and E.D., STR. 1081/2/SE-3, Cell, dated 10th July, 1981.]

as the State Government may, by notification in the Official Gazette, appoint.

2.

Definitions.

- In this Act, unless the context otherwise requires,-

(1)

"appoint date" means the date on which this Act comes into force;

(2)

"coaching class" means any institution, other than a recognised school conducted by any person or body of persons, by whatever name called and established and administered with the object of preparing its students for any certificate or diploma or degree or any college or schools course;

(3)

"college" means a college conducted by, or affiliated to, a University established by law in the State;

(4)

"Department" means the Education Department of the Government of Maharashtra;

(5)

"Deputy Director" means the Deputy Director of Education of the educational region or [the Deputy Director of Vocational Education and Training of the educational region]

[These words were substituted for the words the Deputy Director of Technical Education of the revenue division' by Maharashtra 30 of 1987, Section 2(9).]

as the case may be, appointed as such a by the State Government;

Explanation. - For the purposes of this clause, educational region means the region recognised as such by the Department for the purposes of administration pertaining to education in the State;

(6)

"Director" means the Director of Education or the Director of Technical Education [or the Director of Vocational Education and Training]

[These words were inserted by Maharashtra 30 of 1987, Section 2(b).]

, as the case may be, appointed as such by the State Government;

(7)

"employee" means any member of the teaching and non-teaching staff of a recognised school; [and includes [Assistant Teacher (Probationary)]

[These words were inserted by Maharashtra 14 of 2007, Section 10(a), (w.e.f. 30.4.2007).]

];

(8)

"existing private school" means a recognised private school which is in existence on the appointed date;

(9)

"Head of a school" or Head" means the person, by whatever name called, in charge of the academic and administrative duties and functions of a school conducted by any Management and recognised or deemed to be recognised under this Act, and includes a principal, vice-principal, head-master, head-mistress, assistant head-master, assistance head-mistress or superintendent thereof;

(10)

"Junior College of Education" means a school imparting teacher education to persons for being appointed as teachers [and [Assistant Teacher (Probationary)]

[These words were inserted by Maharashtra 14 of 2007, Section 10(b), (w.e.f. 30.4.2007).]

] in pre-school centres or primary schools;

(11)

"local authority" means a Zilla Parishad, a Municipal Corporation, or a Municipal Council, as the case may be;

(12)

"Management" in relation to a school, means,-

(a)

in the case of a school administered by the State Government, the Department;

(b)

in the case of a school administered by a local authority, that local authority; and

(c)

in any other case, the person or body of persons, whether incorporated or not and by whatever name called, administering such school;

(13)

"minority school" means a school established and administered by a minority having the right to do so under clause (1) of article 30 of the Constitution of India;

(14)

"Municipal Corporation" means a Municipal Corporation established or constituted under the Bombay Municipal Corporation Act, or the Bombay Provincial Municipal Corporation Act, 1949, or the City of Nagpur Corporation Act, 1948;

(15)

"Municipal Council" means a Municipal Council established or constituted under the Maharashtra Municipalities Act, 1965;

(16)

"pre-school centre" means an institution, by whatever name called which provides education for children who have attained the age of three years but have not attained the age of six years;

(17)

"prescribed" means prescribed by rules;

(18)

"primary education" means education imparted in such subjects and upto such standards as may be determined by the State Government, from time to time, located either in a primary or secondary school;

(19)

"primary school" means a recognised school, or a part of such school, in which primary education is imparted;

(20)

["private school" means a recognised school established or administered by a Management, other than the Government or a local authority; []

[Clause (20) shall be deemed to have been substituted with effect from the 7th August, 1987, by Maharashtra 23 of 1989, Section 2.]

]

(21)

["recognised" means recognised by the Director, the Divisional Board or the State Board, or by any officer authorised by him or by any of such Boards;]

[Clause (21) was substituted by Maharashtra 32 of 1990, Section 22(d).]

[* * * * *]

[Clause (22) was deleted by Maharashtra 30 of 1987, Section 2(4).]

(23)

"rules" means the rules made by the State Government under this Act;

(24)

["School" means a primary school, secondary school, higher secondary school, junior college of education or any other institution by whatever name called including, technical, vocational or art institution or part of any such school, college or institution, which imparts general, technical, vocational, art or, as the case may be, special education or training in any faculty or discipline or subject below the degree level;

[These Clauses were substituted by Maharashtra 32 of 1990, Section 2(e).]

(24A)

[["Assistant Teacher (Probationary)"] means a member of base teaching cadre appointed on honorarium and subject to such terms and conditions as specified in the Government Resolution published in the Maharashtra Government Gazette, Extraordinary, No. 12, Part 1 - Central Sub-Section, dated the 15th February 2007, for eventual appointment as a teacher;]

(25)

"State Board" means,-

(a)

the Maharashtra State Board of Secondary and Higher Secondary Education established under the Maharashtra Secondary and Higher Secondary Education Boards Act, 1965;

(b)

the Board of Technical Examinations, Maharashtra State;

(c)

the Maharashtra State Board of Vocational Examinations; or

(d)

the Art Examinations Committee;]

(26)

"teacher" means a member of the teaching-staff, and includes the Head of a school;

(27)

"Zilla Parishad" means a Zilla Parishad established or constituted under the Maharashtra Zilla Parishads and Panchayat Samitis Act, 1961.

3.

Application of Act.

(1)

The provisions of this Act shall apply to all private schools in the State of Maharashtra, whether receiving any grant-in-aid from the State Government or not.

(2)

Notwithstanding anything contained in sub-section (1), the provisions of this Act shall not apply to the recruitment [of the Head of a minority school and]

[These words were substituted for the words 'Conditions of Service and Conduct and discipline of the Head of a minority school or' by Maharashtra 30 of 1987, Section 3.]

any other persons (not exceeding three) who are employed in such school and whose names are notified by the Management to [the Director or, as the case may be,]

[These words were inserted by Maharashtra 32 of 1990, Section 3.]

the Deputy Director for this purpose.

4.

Terms and conditions of service of employees of private schools.

(1)

Subject to the provisions of this section, the State Government may make rules providing for the minimum qualifications for recruitment (including its procedure), duties, pay, allowances, post-retirement and other benefits, and other conditions of service of employees of private schools and for reservation of adequate number of posts for members of the backward classes:

Provided that, neither the pay nor the rights in respect of leave of absence, age of retirement and post-retirement

benefits and other monetary benefits of an employee in the employment of an existing private school on the appointed date shall be varied to the disadvantage of such employee by any such rules.

(2)

Every employee of private school shall be governed by such Code of Conduct as may be prescribed. On the violation of any provision of such Code of Conduct the employee shall be liable to disciplinary action after conducting an enquiry in such manner as may be prescribed.

(3)

If the scales of pay and allowances, post-retirement and other benefits of the employees of any private school are less favourable than those provided by the rules made under sub-section (1), the Director shall direct in writing the Management of such school to bring the same up to the level provided by the said rules, within such period or extended period as may be specified by him.

(4)

Failure to comply with any direction given by the Director in pursuance of sub-section (3) may result in the recognition of the school concerned being withdrawn, provided that the recognition, shall not be withdrawn unless the Management of the school concerned has been given a reasonable opportunity of being heard.

(5)

No employee working in a private school shall work in any coaching class. If any employee, in contravention of this provision, works in any coaching class, his services shall be liable to be terminated by the Management, provided that no such order of termination shall be issued unless the employee concerned has been given a reasonable opportunity of being heard.

(6)

No employee of a private school shall be suspended, dismissed or removed or his services shall not be otherwise terminated or he shall not be reduced in rank by the Management, except in accordance with the provisions of this Act and the rules made in that behalf.

4A.

[Director's power to hold or order holding of inquiries.

[Section 4A was inserted by Maharashtra 30 of 1987, Section 4.]

(1)

Notwithstanding anything contained in sub-section (6) of section 4 or any other provisions of this Act or the rules made thereunder, where in any case of alleged misconduct or misbehaviour of a serious nature or moral turpitude of an employee-

(a)

an inquiry is held by an Inquiry Committee in to such allegations and the Director is of the opinion that the Inquiry Committee has unreasonably exonerated the employee, he may call for and examine the record and proceeding of such inquiry for the purpose of satisfying himself as to the correctness of the decision on the basis of its findings, and may either annul, revise, modify or confirm the said decision or may direct the Inquiry Committee to make further inquiry for taking such additional evidence as they may think necessary or he may himself take or authorise any other officer not below the rank of the Education Officer to take such additional evidence; and while making an order under this clause, if the Director is satisfied that the charges of serious misconduct, misbehaviour, or as the case may be, moral turpitude have been substantially proved, he shall direct the Management to impose on such employee any of the penalties as specified in sub-section (4):

Provided that the Director shall not record any order under this sub-section without giving the party affected thereby and the Management an opportunity of being heard;

(b)

the Management has either neglected or refused to hold an inquiry against such employee in accordance with the provisions of this Act and the rules made in that behalf, the Director shall direct the Management to initiate action within thirty days from the receipt of such direction for holding inquiry into the allegation against such employee and to complete the same in accordance with such provisions and rules.

(2)

Where there is a failure on the part of the Management to initiate action as directed under clause (b) of sub-section (1) to hold an inquiry and to complete the same within the period prescribed under the rules the Director may himself hold,

or direct any officer not below the rank of Education Officer to hold, such inquiry.

(3)

While holding an inquiry the Director or the officer authorised by him shall follow the same procedure as is followed by the Inquiry Committee under the rules made under this Act as if the Director or the officer so authorised were an Inquiry Committee for the purpose of holding such inquiry.

(4)

On holding such inquiry by the Director himself or on receipt of the report of the inquiry officer if the Director is satisfied that the charges of serious misconduct, misbehaviour or as the case may be, moral turpitude have been substantially proved, he shall, by an order in writing, direct the Management that a penalty of dismissal, removal from service, termination of service, or as the case may be, reduction in rank as he may, in the circumstances of the case deem fit, be imposed on the employee concerned:

Provided that, no such order shall be passed by the Director unless the employee and the Management concerned are given a reasonable opportunity of showing cause against the proposed order.

(5)

The order of the Director under clause (a) of sub-section (1) or subsection (4) shall be binding on both the Management and the employee and the same shall be complied with by the Management within such period as may be specified by the Director.)]

5.

Certain obligations of Management of private schools.

(1)

The Management shall, as soon as possible fill in, in the manner prescribed, every permanent vacancy in a private school by the appointment of a person duly qualified to fill such vacancy;

[Provided that unless such vacancy is to be filled in by promotion, the Management shall, before proceeding to fill such vacancy, ascertain from the Educational Inspector, Greater Bombay, [the Education Officer, Zilla Parishad or, as the case may be, the Director or the officer designated by the Director in respect of schools imparting technical, vocational, art or special education,]

[The proviso was added, by Maharashtra 30 of 1987, Section 5(a).]

whether there is any suitable person available on the event of such person being available, the Management shall appoint that person in such vacancy.]

(2)

Every person appointed to fill a permanent vacancy [except [Assistant Teacher (Probationary)]

[These words were inserted by Maharashtra 14 of 2007 Section 11(a), (w.e.f. 30.4.2007).]

] shall be on probation for a period of two years. Subject to the provisions of sub-sections (3) and (4), he shall, on completion of this probation period of two years, be deemed to have been confirmed.

[Provided that, every person appointed as [Assistant Teacher (Probationary)]

[This proviso has added by Maharashtra 14 of 2007, Section 11(b), (w.e.f. 30.4.2007).]

shall be on probation for a period of three years.]

(2A)

[Subject to the provisions of sub-sections (3) and (4), [Assistant Teacher (Probationary)]

[Sub-section (2A) was Inserted by Maharashtra 14 of 2007, Section 11(c), (w.e.f. 30.4.2007).]

shall, on completion of the probation period of three years, be deemed to have been appointed and confirmed as a teacher.]

(3)

If in the opinion of the Management, the work or behaviour of any probationer, during the period of his probation, is not satisfactory, the Management may terminate his services at any time during the said period after giving him one month's notice [or salary [or honorarium]

[These words were added by Maharashtra 30 of 1987, Section 5(b).]

of one month in lie of notice.]

(4)

If the services of any probationer are terminated under sub-section (3) and he is reappointed by the Management in the same school or any other school belonging to it within a period of one year from the date on which his services were

terminated, then the period of probation undergone by him previously shall be taken into consideration in calculating the required period of probation for the purposes of sub-section (2).

(4A)

[Nothing in sub-section (2), (3) or (4) shall apply to a person appointed to fill a permanent vacancy by promotion or by absorption as provided under the proviso to sub-section (1).]

[Sub-section (4A) was inserted by Maharashtra 30 of 1987, Section 5(c).]

(5)

The Management may fill in every temporary vacancy by appointing a person duly qualified to fill such vacancy. The order of appointment shall be drawn up in the form prescribed in that behalf, and shall state the period of appointment of such person.

6.

Obligations of Head of a private school.

(1)

[If-

(a)

the Head of a private school or any person duly authorised by him in that behalf,-

(i)

makes unauthorised alterations in the date of birth of any student recorded in the General Register of the school or gives a school leaving certificate with the date of birth different from that recorded in the General Register; or

(ii)

admits any student from an unrecognised educational institution without a written order of Deputy Director; or

(iii)

gives accelerated promotion to, or detains any student, either of his own accord or at the instance of the Management, in contravention of the rules made in that behalf; or

(b)

the employee of a private school is dismissed or removed or his services are otherwise terminated on account of misconduct, gross negligence of duties, moral turpitude, misappropriation of school money or material, negligence or misconduct or both in connection with the examinations or creation of communal disharmony;]

then the Director may, after making such enquiries as he thinks fit, by an order in writing debar the Head or such authorised person [or such employee]

[These words were added by Maharashtra 30 of 1987, Section 6(1)(b).]

from holding that post for a period of five years from the date of the order. If after the said period of five years, the Head or such authorised person [or such employee]

[These words were added by Maharashtra 30 of 1987, Section 6(1)(b).]

is found to have committed any of the acts aforesaid again, then he may, after giving him a reasonable opportunity of being heard, be permanently debarred by the Director from holding such post in any private school.

(2)

After making any order under sub-section (1), the Director shall cause the name of such Head or authorised person [or employee]

[These words were added by Maharashtra 30 of 1987, Section 6(2).]

to be entered in a Black List Register maintained for the purpose, and communicate the name of the Head or such person [or employee]

[These words were added by Maharashtra 30 of 1987, Section 6(2).]

to all Managements of private schools in the State.

7.

Procedure for resignation by employees of private schools.

- If any employee intends to resign his post in any private school, at any time after the appointed date, he shall draw up a letter of resignation in duplicate and sign both the copies of that letter and put the date thereon. He may then forward one copy to the Management by registered post and keep other copy with him.

8.

Constitution of School Tribunals.

(1)

The State Government shall, by notification in the Official Gazette, constitute one or more Tribunals to be called "School Tribunals" and define the jurisdiction of each Tribunal in such notification.

(2)

A Tribunal shall consist of one person only to be appointed by the State Government.

(3)

A person shall not be qualified for appointment as a Presiding Officer of a Tribunal, unless,-

(a)

he is holding or has held a judicial office not lower in rank than that of Civil Judge (Senior Division),

(b)

he has practised as an Advocate or Attorney for not less than seven years, or

(c)

he is holding or has held an office not lower in rank than that of Under Secretary to Government, Assistant Commissioner of Labour or Deputy Director of Education in the State.

(4)

The appointment of a person as a Presiding Officer of a Tribunal may be on a full time or part-time basis, and may be for such period or periods, but not exceeding five years in the aggregate, as the State Government may, from time to time, in each case decide.

(5)

The remuneration and other conditions of service of the Presiding Officer shall be determined by the State Government.

(6)

The State Government shall make available to the Tribunal such ministerial staff as may be necessary for the discharge of its functions under this Act.

(7)

All expenditure on account of the remuneration, pension or provident fund contribution, leave allowance and other allowances and facilities, which may be admissible to the Presiding Officer and the staff placed at his disposal, shall be met from the Consolidated Fund of the State.

(8)

If any vacancy, other than a temporary vacancy, occurs, in the office of the Presiding Officer of a Tribunal, the State Government shall, as soon as possible, appoint another qualified person to fill the vacancy. Any proceedings pending before the former Presiding Officer may be continued and disposed of by his successor from the stage at which they were, when the vacancy occurred.

9.

Right of appeal to Tribunal to employees of private schools.

(1)

Notwithstanding anything contained in any law or contract for the time being in force, [any employee in a private school-

(a)

who is dismissed or removed or whose services are otherwise terminated or who is reduced in rank, by the order passed by the management; or

(b)

who is superseded by the Management while making an appointment to any post by promotion;

and who is aggrieved, shall have a right of appeal and may appeal against any such order or supersession to the Tribunal constituted under section 8]

[This portion was substituted for the portion beginning with the words 'any employee in a private school' and ending with the word and figure 'section 8' by Maharashtra 30 of 1987, Section 7.]

:

Provided that, no such appeal shall lie to the Tribunal in any case where the matter has already been decided by a Court of competent jurisdiction or is pending before such Court, on the appointed date or where the order of dismissal, removal, otherwise termination of service or reduction in rank was passed by the Management at any time before the 1st July 1976.

(2)

Such appeal shall be made by the employee to the Tribunal, within thirty days from the date of receipt by him of the order of dismissal, removal, otherwise termination of service or reduction in rank, as the case may be:

Provided that, where such order was made before the appointed date, such appeal may be made within sixty days from the said date.

(3)

Notwithstanding anything contained in sub-section (2), the Tribunal may, entertain an appeal made to it after the expiry of the said period of thirty or sixty days, as the case may be, if it is satisfied that the appellant has sufficient cause for not preferring the appeal within that period.

(4)

Every appeal shall be accompanied by a fee of [five hundred]

[These words were substituted for the word 'fifty' by Maharashtra 37 of 1997, Section 2.]

rupees, which shall not be refunded and shall be credited to the Consolidated Fund of the State.

10.

General powers and procedure of Tribunal.

(1)

For the purposes of admission, hearing and disposal of appeals, the Tribunal shall have the same powers as are vested in an Appellate Court under the Code of Civil Procedure, 1908, and shall also have the power to stay the operation of any order against which an appeal is made, on such conditions as it may think fit to impose and such other powers as are conferred on it by or under this Act.

(2)

The Presiding Officer of the Tribunal shall decide the procedure to be followed by the Tribunal for the disposal of its business including the place or places at which and the hours during which it shall hold its sittings.

(3)

Every appeal shall be decided as expeditiously as possible. In every case endeavour shall be made by the Tribunal to decide an appeal within three months from the date on which it is received by the Tribunal. If the Tribunal is unable to dispose of any appeal within this period, it shall put on its record the reasons therefor.

11.

Powers of Tribunal give appropriate reliefs and directions.

(1)

On receipt of an appeal, where the Tribunal, after giving reasonable opportunity to both parties of being heard, is satisfied that the appeal does not pertain to any of the matters specified in section 9 or is not maintainable by it, or there is no sufficient ground for interfering with the order of the Management it may dismiss the appeal.

(2)

Where the Tribunal after, giving reasonable opportunity to both parties of being heard, decides in any appeal that the order of dismissal, removal, otherwise termination of service or reduction in rank was in contravention of any law (including any rules made under this Act), contract or conditions of service for the time being in force or was otherwise illegal or improper, the Tribunal may set aside the order of the Management, partially or wholly, and direct the Management,-

(a)

to reinstate the employee on the same post or on a lower post as it may specify;

(b)

to restore the employee to the rank which he held before reduction or to any lower rank as it may specify;

(c)

to give arrears of emoluments to the employee for such period as it may specify;

(d)

to award such lesser punishment as it may specify in lieu of dismissal, removal, otherwise termination of service or reduction in rank, as the case may be;

(e)

where it is decided not to reinstate the employee or in any other appropriate case, [to give to the employee twelve months' salary (pay and allowances, if any) if he has been in the service of the school for ten years or more and six months salary (pay and allowances, if any) if he has been in service of the school for less than ten years]

[This portion was substituted for the words 'to give such sum to the employee not exceeding his emoluments for six months' by Maharashtra 30 of 1987, Section 8.]

, by way of compensation, regard being had to loss of employment and possibility of getting or not getting suitable employment thereafter, as it may specify; or

(f)

to give such other relief to the employee and to observe such other condition as it may specify, having regard to the circumstances of the case.

(3)

It shall be lawful for the Tribunal to recommend to the State Government that any dues directed by it to be paid to the employee, or in case of an order to reinstate the employee any employments to be paid to the employee till he is reinstated, may be deducted from the grant due and payable or that may become due and payable in future, to the Management and be paid to the employee direct.

(4)

Any direction issued by the Tribunal under sub-section (2) shall be communicated to both parties in writing and shall be complied by the Management within the period specified in the direction, which shall not be less than thirty days from the date of its receipt by the Management.

12.

Decision of Tribunal to be final and binding.

- Notwithstanding anything contained in any law or contract for the time being in force, the decision of the Tribunal on an appeal entertained and disposed of by it shall be final and binding on the employee and the Management and no suit, appeal or other legal proceeding shall lie in any Court, or before any other Tribunal or authority, in respect of the matters decided by the Tribunal.

13.

Penalty to Management for failure to comply with Tribunal's directions.

(1)

If the Management fails, without any reasonable excuse, to comply with any direction issued by the Tribunal [under section 11 or any order issued by the Director under clause (a) of sub-section (1) or sub-section (4) of section 4A within the period specified in such direction, or as the case may be, under sub-section (5) of section 4A or within such further period as may be allowed by the Tribunal or Director as the case may be.]

[This portion was substituted for the portion beginning with the words 'under section' and ending with the words 'Tribunal' by Maharashtra 30 of 1987, Section 9.]

the Management shall, on conviction, be punished,-

(a)

for the first offence, [with imprisonment for a term which may extend to fifteen days or with fine which may extend to fifty thousand rupees, or with both]

[These words were substituted for the words 'with fine which may extend to one thousand rupees' by Maharashtra 17 of 1995, Section 2(1)(a).]

:

Provided that, in the absence of special and adequate reasons to the contrary to be mentioned in the judgement of the Court, the fine shall not be less than [ten thousand rupees]

[These words were substituted for the words 'one hundred rupees' by Maharashtra 17 of 1995, Section 2(1)(b).]

; and

(b)

for the second and subsequent offences, [with imprisonment for a term which may extend to fifteen days or with fine which may extend to seventy five thousand rupees, or with both]

[These words were substituted for the words 'with fine which may extend to two thousand rupees' by Maharashtra 17 of 1995, Section 2(2)(a).]

:

Provided that, in the absence of special and adequate reasons to the contrary to be mentioned in the judgement of the Court, the fine shall not be less than [twenty thousand rupees.]

[These words were substituted for the words 'five hundred rupees' by Maharashtra 17 of 1995, Section 2(2)(b).]

(2)

(a)

Where the Management committing an offence under this section is a society, every person, who, at the time the offence was committed, was in charge of and was responsible to, the society, for the conduct of the affairs of the society as well as the society, shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that, nothing contained in this sub-section shall render any person liable to the punishment, if he proves that the offence was committed without his knowledge or that he had exercised all due diligence to prevent the commission of the offence.

(b)

Notwithstanding anything contained in clause (a), where the offence has been committed by a society and it is proved that the offence has been committed with the consent or connivance of, or is attributable to any neglect on the part of, any president, chairman, secretary, member, Head or manager or other officer or servant of the society, such president, chairman, secretary, member, Head or manager or other officer or servant concerned shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly.

Explanation. - For the purposes of this section "society" means a society registered under the Societies Registration Act, 1860, or a public trust registered under the Bombay Public Trusts Act, 1950, or any other body corporate, and includes an association or body of persons, by whatever name called, under whose management one or more private schools are conducted.

14.

Legal practitioners excluded from appearance.

- Notwithstanding anything contained in any law for the time being in force, a legal practitioner shall not be entitled to appear on behalf of any party in any proceedings before the [Director or the Tribunal]

[These words were substituted for the word 'Tribunal' by Maharashtra 30 of 1987, Section 10(a).]

, except with the special permission the [Director or the Tribunal]

[These words were substituted for the word 'Tribunal' by Maharashtra 30 of 1987, Section 10(a).]

:

[Provided that, the appellant shall, if he so desires, be allowed to represent himself before the Director or the Tribunal through any other person of his choice who shall be an employee in the same or any other private school. Such representative shall obtain permission to do so from the Management of his school.]

[This proviso was added by Maharashtra 30 of 1987, Section 10(b).]

15.

Transfer of pending appeals to Tribunal.

- All appeals of employees [or, as the case may be, of the Managements]

[These words should be deemed always to have been inserted by Maharashtra 30 of 1987, Section 11(a).]

of private schools relating to the matters specified in section 9, which may be pending [* *]

[These words 'on the appointed date' were deleted by Maharashtra 23 of 1989, Section 3(a).]

before the Department of the Director or an Officer subordinate to him, as the case may be, in accordance with the provisions of the Secondary Schools Code, shall be transferred to the Tribunal. [* * * *]

[The words 'as soon as it is constituted' shall be deemed always to have been deleted by Maharashtra 30 of 1987, Section 11(b).]

The Tribunal shall hear and dispose of every such appeal, as if it were made under section 9, provided that the prescribed fee of Rs. 50 is paid by the employee [or the Management, as the case may be,]

[Theses words were inserted, by Maharashtra 23 of 1989, Section 3(b).]

within one month of the receipt of a notice given to him by the Tribunal for that purpose.

[Provided that any such appeal decided by the Department or the Director, or an officer subordinate to him, during the period commencing on the date of coming into force of this Act, and ending on the date of commencement of the Maharashtra Employees of Private Schools (Conditions of Service) Regulation (Amendment) Act, 1987 in accordance with the directions of the High Court of Bombay, shall be deemed to have been validly decided, as if the Department or the Director or the officer subordinate to him had, notwithstanding anything contained in this Act, the jurisdiction to decide the same.]

[This proviso was added, by Maharashtra 30 of 1987, Section 11(c).]

[Explanation. - for the purpose of the section, -

(a)

appeals of the employees or, as the case may be, of the Management relating to the matters specified in clause (a) of sub-section (1) of section 9; and

(b)

appeals of employees or, as the case may be, of the Management relating to the matters specified in clause (d) of sub-section (1) of section 9, means, respectively, the appeals pending on the appointed date and on the date of commencement of the Maharashtra Employees of Private Schools (Conditions of Service) Regulation (Amendment) Act, 1987, before the Department or the Director or an officer subordinate to him, as the case may be.]

16.

Rules.

(1)

The State Government may, by notification in the Official Gazette, make rules for carrying out the purposes of this Act.

(2)

In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely :-

(a)

the minimum qualifications for recruitment of employees of private schools (including its procedure);

(b)

their scales of pay and allowances;

(c)

their post-retirement and other benefits;

(d)

the other conditions of service of such employees including leave superannuation, re-employment and promotion;

(e)

the duties of such employees and Code of Conduct and disciplinary matters;

(f)

the manner of conducting enquires;

(g)

any other matter which is required to be or may be prescribed.

(2A)

[The power to make rules under clauses (a) to (d) conferred by subsection (2) shall include the power to give retrospective effect to the rules or any of them but no retrospective effect shall be given to any rule so as to prejudicially affect the interests of any person to whom such rule may be applicable.]

[Sub-section (2A) shall be deemed always to have been inserted by Maharashtra 30 of 1987, Section 12]

(3)

All rules made under this Act shall be subject to the condition of previous publication.

(4)

Every rule made under this Act shall be laid, as soon as may be, after it is made before each House of the State Legislature, while it is in session for a total period of thirty days, which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making and modification in the rule or both Houses agree that the rule should not be made, and notify such decision in the Official Gazette, the rule shall from the date of publication of such notification have effect, only in such modified form or be of no effect as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done or omitted to be done under that rule.

Notifications

G. N., E. & E. D., No. STR. 1081/2/SE-3, Cell., dated 10th July 1981 (M. G., Part 4-B, page 1560) - In exercise of the powers conferred by sub-section (3) of section 1 of the Maharashtra Employees of Private Schools (Conditions of Service) Regulation Act, 1977 (Maharashtra III of 1978), the Government of Maharashtra hereby appoints the fifteenth

day of July 1981, to be the date on which the provisions of the said Act shall come into force.

Amended by G. N., E. & E. D., No PST. 1083/181/SE-3, Cell., dated 13th April, 1983 (M. G., Part 4-B, page 415)

Amended by G. N., E. & E. D., No. PST. 1085/288/Sec-3 Cell., dated 26th March, 1987 (M. G., Part 4-B, page 361)

Amended by G. N., S. E. D., No. PST. 1191/(3/91) SE-3 Cell., dated 5th September, 1992 (M. G., Part 4-B, page 1563)

G. N., E. & E. D., No. STR. 1081/2/SE-3, Cell., dated 13th July, 1981 (M. G., Part 4-B, page 1561) - In exercise of the powers conferred by sub-section (1) of section 8 of the Maharashtra Employees of Private Schools (Conditions of Service) Regulation Act, 1977 (Maharashtra III of 1978), the Government of Maharashtra, hereby constitutes, with effect from the sixteenth day of July 1981, the School Tribunal as mentioned in column 2 of the Schedule hereto; and defines the jurisdiction of each of the Tribunals as mentioned against it in column 3 of the said Schedule.

Schedule

Serial

No.

Name

of the School Tribunal

Jurisdiction

(1)

(2)

(3)

[1

[Substituted by G.N. of 26-3-1987.]

School

Tribunal, Bombay

[Substituted by G.N. of 26-3-1987.]

The

district of, -

[Substituted by G.N. of 26-3-1987.]

(1) [

Bombay and Bombay Suburban (2) Raigad, (3) Ratnagiri, (4)

Sindhudurg.]

[Substituted by G.N. of 5-9-1992.]

2

[Substituted by G.N. of 26-3-1987.]

School

Tribunal, Pune

[Substituted by G.N. of 26-3-1987.]

The

districts of, -

[Substituted by G.N. of 26-3-1987.]

(1) Pune,

(2) Ahmednagar, (3) Satara, (4) Sangli, (5) Solapur, (6)

Kolhapur, (7) Raigad.]

[Substituted by G.N. of 26-3-1987.]

[3

[Substituted by G.N. of 13-4-1983.]

School

Tribunal, Nagpur

[Substituted by G.N. of 13-4-1983.]

The

districts of, -

[Substituted by G.N. of 13-4-1983.]

(1) Nagpur,

(2) Wardha, (3) Bhandara (4) Chandrapur (5) Gadchiroli.

[Substituted by G.N. of 13-4-1983.]

4

[Substituted by G.N. of 13-4-1983.]

School

Tribunal, Amravati and Aurangabad

[Substituted by G.N. of 13-4-1983.]

The

districts of, -

[Substituted by G.N. of 13-4-1983.]

(1)

Amravati, (2) Buldhana, (3) Akola, (4) Yavatmal, (5) Aurangabad,

(6) Jalna, (7) Parbhani, (8) Beed, (9) Nanded, (10) Osmanabad,

(11) Latur.]

[Substituted by G.N. of 13-4-1983.]

[5

[Added by G.N. of 5-9-1992.]

School

Tribunal, Nashik

[Added by G.N. of 5-9-1992.]

The

districts of, -

[Added by G.N. of 5-9-1992.]

(1) Thane,

(2) Nashik, (3) Dhule, (4) Jalgaon.]

[Added by G.N. of 5-9-1992.]

G. N. S. E. D. No. PST. 1092/105470/C2/92) SE-3/Cell, dated 10th February, 1994 (M. G. Part 4-B, page 257) -

Whereas, by Government Notification, Education and Employment Department No. STR. 1081/2/SE-3/Cell, dated 13th July, 1981 (hereinafter referred to as "the said notification" issued under sub-section (1) of section 8 of the Maharashtra Employees of Private Schools (Conditions of Service) Regulation Act, 1977 (Maharashtra III of 1978) (hereinafter referred to as "the said Act"), the Government of Maharashtra constituted, inter alia, the School Tribunal, Aurangabad and the School Tribunal, Nagpur, and redefined the jurisdiction of these Tribunals by Government Notification, Education and Employment Department, No. PST. 1083/181/SE-3 Cell, dated 13th April, 1983.

And whereas, the Government of Maharashtra has decided to constitute a School Tribunal at Amravati for the districts of Amravati, Buldhana, Akola and Yavatmal and for that purpose it is necessary to redefine the jurisdiction of the School Tribunal, Aurangabad.

Now, therefore, in exercise of the powers, conferred by sub-section (1) of section 8 of the said Act, the Government of Maharashtra, hereby, constitutes with effect from 10th day of February, 1994, the School Tribunal at Amravati as mentioned in column 2 of the Schedule hereto and defines the jurisdiction of the School Tribunal, Amravati and redefines the jurisdiction of the School Tribunal, Aurangabad as mentioned in column 3 of the said Schedule and directs that the appeals pertaining to the districts of Amravati, Akola, Buldhana and Yavatmal shall be transferred to the School Tribunal, Amravati and for that purpose amends the said Notification, as follows namely In the Schedule to the said Notification, -

(a)

for the entry at serial No. 4 the following entry shall be substituted namely

"4. School Tribunal, Aurangabad

The districts of -

(1) Aurangabad

(2) Jalna

(3) Parbhani

- (4) Beed
- (5) Nanded
- (6) Osmanabad
- (7) Latur";
- (b)

after the entry at serial number 5, the following entry shall be added, namely :-

"6. School Tribunal, Amravati

The districts of -

- (1) Amravati
- (2) Akola
- (3) Buldhana
- (4) Yavatmal".

Schedule 2

Serial No.

Name of the School Tribunal

Jurisdiction

- (1)
- (2)
- (3)

1

School Tribunal, Aurangabad

The districts of -

- (1) Aurangabad
- (2) Jalna
- (3) Parbhani
- (4) Beed
- (5) Nanded
- (6) Osmanabad
- (7) Latur

2

School Tribunal, Amravati

The districts of -

- (1) Amravati
- (2) Akola
- (3) Buldhana
- (4) Yavatmal.

G. N. S. E. D. No. SSN. 1095/(463)/SE.-2 dated 29th October, 1996 (M.G. Part 4-B, page 1301) - Whereas, by Government Notification, Education and Employment Department No. STR. 1081/2/SE-3-Cell, dated the 13th July 1981 (hereinafter referred to as "the said notification") issued under sub-section (1) of section 8 of the Maharashtra Employees of Private Schools (Conditions of Service, Regulation Act, 1977 (Maharashtra III of 1978) hereinafter referred to as "the said Act") the Government of Maharashtra constituted inter alia, the School Tribunal Mumbai the School Tribunal, Pune, the School Tribunal, Nagpur and the School Tribunal Nashik and redefined the jurisdiction of these Tribunals from time to time.

And whereas, the Government of Maharashtra has decided to constitute Additional School Tribunals at Pune and Nagpur for the district of Solapur and Ahmednagar, (2) the district of Bhandana Chandrapur, Gadchiroli and Wardha and for that purpose is necessary to redefine the jurisdiction of the School Tribunals at Pune and Nagpur.

Now, therefore, in exercise of the powers conferred by sub-section (1) of section 8 of the said Act, the Government of Maharashtra hereby constitutes with effect from 1st day of November 1996 the Additional School Tribunals at Pune and Nagpur as mentioned in column (2) of the schedule hereto and defines the jurisdiction of the Additional School Tribunals, Pune and Nagpur as mentioned in column (3) of the said schedule and redefines the jurisdiction of the School

Tribunals at Pune and Nagpur respectively as specified in column (3) of the said schedule and directs that to the appeals pertaining to the District of Solapur and Ahmednagar shall be transferred to the Additional School Tribunal Pune and the appeals pertaining to the District of Bhandara, Chandrapur, Gadchiroli and Wardha shall be transferred to Additional School Tribunal Nagpur and for that purpose amend the said notification as follows, namely:-

In the Schedule to the said notification:-

(a)

in the entry at serial No. 2, in column 3, for the existing entries, the following entries shall be substituted namely: -

"The districts of (1) Pune (2) Raigad.

(b)

in the entry at serial No. 3, in column 3, for the existing entries the following entries shall be substituted namely:-

"The district of (1) Nagpur."

(c)

in the entry after serial No. 7, the following serial No. and entries shall be added, namely:-

"8

Additional School Tribunal, Pune (Solapur)

The Districts of-

(1) Solapur

(2) Ahmednagar

9.

Additional School Tribunal Nagpur (Chandrapur)

The districts of-

(1) Bhandara

(2) Chandrapur

(3) Gadchiroli

(4) Wardha."

Schedule 3

Serial No.

Name of the School Tribunal

Jurisdiction

(1)

(2)

(3)

1.

School Tribunal, Pune

The Districts of-

(1) Pune

(2) Raigad

2.

School Tribunal, Nagpur

The District of-

(1) Nagpur

8.

Additional School Tribunal, Pune (Solapur)

The Districts of

(1) Solapur

(2) Ahmednagar

9.

Additional School Tribunal, Nagpur (Chandrapur)

The Districts of-

(1) Bhandara

(2) Chandrapur

(3) Gadchiroli

(4) Wardha.

G. N. S. E. D No. SSN. 1095/(463)/SE-2, dated 19th February, 1997 (M.G., Part 4-B, page 295) - Whereas, by Government Notification, Education and Employment Department No. STR 1081/2/SE-3-Cell, dated the 13th July 1981 (hereinafter referred to as "the said notification") issued under sub-section (1) of section 8 of the Maharashtra Employees of Private Schools (Conditions of Service) Regulation Act, 1977 (Maharashtra II of 1978) (hereinafter referred to as "the said Act") the Government of Maharashtra constituted inter alia the School Tribunal, Mumbai the School Tribunal, Pune the School Tribunal, Nagpur and the School Tribunal, Nashik and redefined the jurisdiction of the Tribunals from time to time.

And whereas, the Government of Maharashtra has decided to constitute Additional School Tribunal for Mumbai School Tribunal for the districts of educational South Zone of Greater Mumbai and Thane Revenue District, and for that purpose is necessary to redefine the jurisdiction of the School-Tribunals at Mumbai.

Now, therefore, in exercise of the powers conferred by sub-section (1) of section 8 of the said Act, the Government of Maharashtra hereby constitutes with effect from 19th February 1997 the Additional School Tribunal for Mumbai Tribunal, as mentioned in column (2) of the Schedule hereto and defines the Jurisdiction of the Additional School Tribunal for Mumbai Tribunal at as mentioned in column (3) of the said schedules and redefines the jurisdiction of the School Tribunal at Mumbai and Nashik respectively as specified in column (3) of the said schedule and directs that the appeals pertaining to Educational South Zone of Greater Mumbai and Thane Revenue District shall be transferred to the Additional School Tribunal, for Mumbai Tribunal at and for that purpose amends the said notification as follows, namely:-

In the schedule to the said notification:-

(a)

in the entry at serial No. 1 in column 3, for the existing entries, the following entries shall be substituted namely:-

"The district of Educational North Zone and West Zone of Greater Mumbai.

(b)

in the entry after serial No. 9 the following serial No, and entries shall be added, namely:-

"10

Additional School Tribunal for Mumbai Tribunal (Navi Mumbai)

The Districts of-

(1) Educational South Zone of Greater Mumbai

(2) Thane Revenue

Schedule 4

Serial No.

Name of the School Tribunal

Jurisdiction

(1)

(2)

(3)

1.

School Tribunal Mumbai

Educational North and West Zone of Greater Mumbai

2.

School Tribunal Nashik

The Districts of-

(1) Nashik

(2) Dule

(3) Jalgaon

3.

Additional School Tribunal Mumbai (Navi Mumbai)

The Districts of-

(1) Educational South Zone of Greater Mumbai

(2) Thane Revenue.

G. N. S. E. D. No. S.S.N. 1097/840/97/SE-2, dated 4th March, 1998 (M.G., Part 4-B, page 911) - Whereas by Government Notification, Education and Employment Department, No. STR 1081/2/SE-3-Cell, dated the 13th July, 1981 (hereinafter referred to as "the said notification") issued under sub-section (1) of section 8 of the Maharashtra Employees of Private School (Conditions of Service) Regulation Act, 1977 (Maharashtra III of 1978) (hereinafter referred to as "the said Act"), the Government of Maharashtra constituted inter-alia, the School Tribunal Mumbai, and redefined its jurisdiction from time to time;

And whereas, by Government Notification, School Education Department, No. SSN. 1095/(463) SE-2 dated the 19th February, 1997, the Government of Maharashtra constituted the Additional School Tribunal at Navi Mumbai for the Educational South Zone of Greater Mumbai and Thane revenue district and redefined jurisdiction of the School Tribunal at Mumbai And whereas, by order dated the 19th June, 1997, in Writ Petition No. 574 of 1997 the Hon'ble High Court has quashed and aside the said Government Notification, dated the 19th February, 1997 in so far as it attaches the schools located in South Mumbai to the School Tribunal in Navi Mumbai and clarified that the school located in South Mumbai will continue to be attached to the School Tribunal in Mumbai;

And whereas, the Government of Maharashtra has decided to redefine the jurisdiction of the School Tribunal at Mumbai and the Additional School Tribunal at Navi Mumbai, as specified in column 3 of the schedule hereto;

Now, therefore in exercise of the powers conferred by sub-section (1) of section 8 of the said Act of all other powers enabling it in that behalf, the Government of Maharashtra hereby redefines the jurisdiction of the School Tribunal at Mumbai and the Additional School Tribunal at Navi Mumbai, as specified against each of them in column 3 of the said schedule, and directs that the appeals pertaining to Educational South Zone of Greater Mumbai shall be transferred to the School Tribunal, Mumbai, and for the purpose amends the said notification as follows, namely:-

In the Schedule to the said notification, -

(a)

in the entry at Serial Number 1, in column (3), for the existing entries, the following entries shall be submitted namely:-
"The districts of Educational South Zone, North and West Zone of Greater Mumbai".

(b)

in entry at Serial Number 10/in column (3) for the existing entries the following entry shall be substituted namely:-
"The districts of Thane".

Schedule 5

Serial No.

Name of the School Tribunal

Jurisdiction

(1)

(2)

(3)

1.

School Tribunal Mumbai

The districts of Educational South Zone, North and West Zone
of Greater Mumbai.

2.

Additional School Tribunal Navi Mumbai

The district of Thane.

[This Explanation shall be deemed always to have been added by Maharashtra 23 of 1989, Section 23(c).]

[This portion was substituted for the portion beginning with the words 'If the Head' and ending with the words 'made in that behalf' by Maharashtra 30 of 1987, Section 6(1)(a).]

Related AI tags, queries and research notes

Translation